

Smt.Fiza Bhatnagar vs Ankur Bhatnagar on 15 June, 2023

Author: Sushrut Arvind Dharmadhikari

Bench: Sushrut Arvind Dharmadhikari, Hirdesh

IN THE HIGH COURT OF MADHYA PRADESH
AT INDORE

BEFORE
HON'BLE SHRI JUSTICE SUSHRUT ARVIND DHARMADHIKARI
&
HON'BLE SHRI JUSTICE HIRDESH
ON THE 15th OF JUNE, 2023

FIRST APPEAL No. 652 of 2009

BETWEEN: -

SMT.FIZA BHATNAGAR W/O ANKUR BHATNAGAR,
AGED ABOUT 28 YEARS, OCCUPATION: UNEMPLOYED
R/O 5,WHITE CHURCH COLONY
INDORE(MADHYA PRADESH)

(SHRI VIJAY ASSUDANI, COUNSEL FOR THE APELLANT).

AND

ANKUR BHATNAGAR S/O YOGENDRA MOHAN BHATNAGAR
271-272, SAKET NAGAR
INDORE (MADHYA PRADESH)

(NONE FOR THE RESPONDENT).

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This appeal coming on for final hearing this day, JU
SUSHRUT ARVIND DHARMADHIKARI passed the following:

JUDGMENT

This first appeal under Section 19 of the Family Courts Act, 1984 has been filed by the appellant/wife being aggrieved by the judgment and decree dated 06.05.2009 passed by the Principal Judge, Family Court, Indore in H.M.A. No. 114/2007 dismissing the application filed under Section 13(1) of the Hindu Marriage Act for dissolution of marriage.

2. The present case is taken up for hearing after exploring the possibility of settlement as directed by this Court on 04.04.2012. Earlier, the mediation took place in the year 2012 but the same failed. Thereafter, on 24.07.2012, the parties appeared in person before this Court and agreed to live

together for a month. In spite of the aforesaid order, they continued to live separately. Hence, this case is taken up for final hearing.

3. The brief facts of the case are that the marriage between the appellant (wife) and respondent (husband) was solemnized on 07.05.2001 at Arya Samaj Mandir, Indore according to Hindu customs and rituals. From the wedlock, one daughter Ku. Ira was born on 16.08.2005 who is presently residing with her mother (appellant). The appellant has alleged that the respondent used to misbehave with her after consuming alcohol. He repeatedly demanded money for business. He also physically assaulted her under the influence of alcohol at late hours in the night. Due to this, appellant left the respondent and is living with her parents since the year 2006. Appellant had sent a notice to the respondent. Thereafter, the respondent/husband filed an application under Section 13-B of the Hindu Marriage Act for mutual divorce, however, due to absence of the respondent, the application was dismissed. Thereafter, the appellant filed an application under Section 13(1) of the Hindu Marriage Act for divorce and alimony on the ground of cruelty and desertion.

4. The learned trial Court rejected the divorce petition on the ground that no cruelty, as alleged by the appellant/wife was proved. It was further held that there was no material on record to show that there was any demand or exchange of dowry. It was also observed that the appellant along with her daughter met the respondent at regular intervals hence, the contention that there was threat to life from the respondent/husband, was also rejected by the trial Court. The respondent/husband was also willing to live together with the appellant/wife and their daughter.

5. Learned counsel appearing for the appellant/wife submitted that the Court below committed grave error in not considering the oral and documentary evidence which establish the ground of cruelty. The learned trial Court failed to consider the fact the respondent used to abuse and assault the appellant under the influence of alcohol. Appellant and respondent are living separately since 2006.

6. On the basis of the pleadings of the respective parties, the trial Court framed two issues. After recording the statement of appellant, respondent, Iqbal Qamar-father of the appellant and after evaluating the evidence, learned Judge held that the appellant/wife failed to establish that any cruelty was meted out by the respondent/husband and dismissed the application.

7. Heard learned counsel for the appellant. Perused the record.

8. The question that arises for consideration is whether the fact that the appellant and respondent are living separately for more than 18 years, would amount to desertion?

9. It is an admitted position that the marriage between the appellant/wife and the respondent/husband was solemnized on 07.05.2001 and thereafter, a daughter namely Ku. Ira was born on 16.08.2005. Since 2006, the appellant is living separately from the respondent along with her parents and daughter. Admittedly, both the parties are living separately for the last 18 years. Every possibility of settlement was explored but the mediation failed. Even after agreeing to live together for a month pursuant to the order of this Court dated 24.07.2012, the appellant and

respondent continued to live separately. In such a situation, the appeal filed by the appellant/wife needs to be allowed.

10. The Apex Court in the case of Poonam Vs. Surendra Kumar in civil appeal no.9545/2010 dated 29.09.2021 has granted the decree of divorce in the exercise of power under Article 142 of the Constitution of India mainly on the ground that parties have not been able to sub-serve the very object of the marriage of companionship of each other from the very inception and have been living apart from more than 19 years. In another case Samir Gosh Vs. Jaya Gosh reported in the year 2007 (4) SCC 511 in para 101 the Apex Court has enumerated some instances of human behaviour which may be relevant in dealing with the case of mental cruelty and a long period of continuous separation conclude that the matrimonial bond is beyond repair and marriage becomes fixation only supported by a legal tie.

11. The Division Bench of this Court in case of Dinesh Nagda Vs. Shantibai reported in First Appeal No.272/2006 decided on 20.10.2011 which is reported in AIR 2012 has granted the decree of divorce in case of irretrievable breakdown of marriage and granted decree of divorce on the ground under section 13(1)(B) of the Hindu Marriage Act. The para 20 of the judgment is reproduced below:-

"20. So far as the issue of desertion is concerned, Section 13(1)(ib) of the Act requires desertion for a continuous period of not less than two years immediately preceding the presentation of the divorce petition. In the present case, the respondent Shantibai has admitted that she is living separately with her parents since 1995-1996 (since 9-10 years prior to giving the affidavit before the trial Court, on 26/7/2005). The statement of the appellant also indicates that the respondent is living separately with her parents since 1995-96. The appellant has stated that he had no marital relation with the respondent since last 10-11 years.

He has stated that for that reason he is having "dry life" for last several years. The aforesaid position is also reflected from the statements of the other witnesses. The respondent's plea that she is living separately on account of the second marriage of the appellant cannot be accepted because the respondent has failed to produce any reliable evidence establishing the second marriage of appellant with Radhabai. The reliance on the affidavit (Ex.D.15) given by Radhabai does not establish second marriage since she has only stated that she is living in the appellant's protection for certain reasons, but she has not stated that she is living as wife of the appellant. Though the respondent has stated that she is ready to live with the appellant, but the father of the respondent has categorically stated that it is not possible for the respondent to live with the appellant. The respondent has failed to establish any reasonable cause for living separately for last about 15 years. Thus, it is clear that the respondent has deserted the appellant and ground for divorce under Section 13(1)(ib) of the Act is made out."

12. Recently, the Division Bench of this Court in Jabalpur in the case of Vibha Shukla Vs. Kailash Dwivedi in First Appeal No.547/2019 decided on 03.02.2022 the decree of divorce has been granted as the husband and wife is living separately for last 17 years and there was no cohabitation between them.

13. In view of the above pronouncement of law, the fact that there is no cohabitation between the present appellant/wife and respondent/husband since last 18 years, the same would amount to desertion and irretrievable breakdown of marriage between the parties.

14. Accordingly, the judgment and decree dated 06.05.2009 passed by the Principal Judge, Family Court, Indore in H.M.A. Case No. 114/2007 is hereby set aside. Consequently, the First Appeal is allowed. The decree for divorce as prayed by the appellant/wife is granted and their marriage stand dissolved.

15. Decree be drawn accordingly and record of the Court below be sent back.

No order as to cost.

(S. A. DHARMADHIKARI)
JUDGE

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